

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

COMPLAINT No: CC006000000078906

Jessy Joy

..... Complainant

Versus

M/s. Nirmal Lifestyle Kalyan Pvt Ltd

..... Respondent

MahaRERA Registration No. P51700005451

Coram: Hon'ble Dr. Vijay Satbir Singh, Member-1

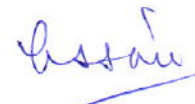
Adv. Lula appeared for the complainant.

Mr. Rohit Chavan appeared for the respondent.

ORDER

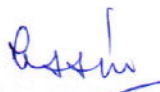
(22nd July, 2019)

1. The complainant is an allottee in the MahaRERA registered project bearing No. P51700005451 belonging to the respondent/promoter. The complainant has filed this complaint seeking directions from MahaRERA to the respondent to pay interest under section-18 of the RERA Act, 2016 in respect of the booking of a flat, admeasuring an area of about 465 sq.fts, in the respondent's project known as "**Platano D**" at Kalyan Dist Thane.
2. The matter was heard finally on 8th July, 2019, when both the parties appeared before the MahaRERA and were heard at length. During the hearings, the complainant has argued that he purchased the said flat for a total consideration amount of Rs. 29,43,702/- vide registered agreement for sale dated 17th April, 2013. According to the said agreement, the date of possession was 31-12-2016 with a grace period of 6 months i.e. June 2017. Till date, the complainant has paid 20% towards the cost of the said flat. On



failure of the respondent to handover the possession of the said flat, this complaint has been filed, claiming interest and compensation under section-18 of the Real Estate (Regulation & Development) Act, 2016 and also for early possession of the said flat.

1. The respondent has disputed the claim of the complainant and argued that as per the registered agreement for sale executed between them the date of possession was 31-12-2016 with 6 months grace period i.e. 30-06-2017 and he is ready to pay the interest as per the RERA Act from 1st July 2017 till the actual date of possession.
2. Considering these facts, this Authority is of the view that admittedly there is a delay on the part of the respondent in handing over possession of the flat to the complainant. As per the registered agreement for sale executed between the complainant and the respondent the date of possession was 31-12-2016 with a grace period of 6 months i.e. 30-06-2017.
3. In the light of the above facts, the MahaRERA directs the respondent to pay interest to the complainant on the actual payment made by the complainant from 1st July 2017 till the actual date of possession at the rate of Marginal Cost Lending Rate (MCLR) plus 2% as prescribed under the provisions of Section-18 of the Real Estate (Regulation and Development) Act, 2016 and the Rules made there under.
4. With the above directions, the complaint stands disposed of.


(Dr. Vijay Satbir Singh)
Member-1/MahaRERA